

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S EVIDENTIARY OBJECTIONS TO
DECLARATIONS OF TYLER J. O'CONNELL IN
SUPPORT OF DEFENDANT'S MOTIONS

(Evid. Code, §§702, 800-805, 1200, 1271, 1521, 352; Cal. Rules of
Court, rule 3.1306(a))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits these Evidentiary Objections under California
3 Rules of Court, rule 3.1306(a), and Evidence Code sections 352, 702, 800 through 805, 1200,
4 1271, and 1521. Plaintiff's right to a written ruling on each objection is preserved under CRC
5 3.1306(a) as construed by Reid v. Google, Inc. (2010) 50 Cal.4th 512. The objections address
6 foundation, hearsay, lay and expert opinion, best-evidence, and probative-versus-prejudicial
7 discretion as to the declarations of Tyler J. O'Connell submitted in support of Defendant's
8 motions. Filed on May 8, 2026 for the May 13, 2026, 9:00 a.m. hearing in Department 302.

9 AUTHORITY

10 These objections are filed under California Rules of Court, rule 3.1306(a), and target evi-
11 dence that Defendant has offered in support of its three motions set for hearing May 13,
12 2026 (Anti-SLAPP, Demurrer, and Motion to Strike CCP section 436), including the Reply
13 Declaration of Tyler J. O'Connell filed May 6, 2026, and Exhibit A thereto. The objec-
14 tions invoke California Evidence Code sections 702 (personal knowledge), 800 to 805 (lay
15 and expert opinion), 1200 (hearsay), 1271 (business-records exception), 1521 (best-evidence
16 rule), 1523 (secondary evidence), and 352 (probative-vs.-prejudicial discretion). Plaintiff's
17 prior objections filed April 24, 2026 (Plaintiff's EVIDENTIARY OBJECTIONS TO THE
18 DECLARATION OF TY..., filed April 24, 2026 (IFP; Register of Actions, CGC-25-631802))
19 are preserved and incorporated by reference.

20 FORMAT

21 Each objection identifies (a) the targeted statement or exhibit by document, paragraph, page,
22 and line number where available; (b) the rule(s) of evidence violated; (c) a one-line ruling-
23 friendly description of the basis. The Court is asked to rule on each objection consistent
24 with CRC 3.1306(a) and to enter a written ruling for each objection.

1 I. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT
2 OF SPECIAL MOTION TO STRIKE, FILED APRIL 9, 2026 (DEFENDANT'S
3 ANTI-SLAPP MOTION, FILED APRIL 9, 2026 (TRANS. ID 79007560))

4 OBJECTION 1 - O'CONNELL DECLARATION (ANTI-SLAPP MOTION (APR. 9, 2026;
5 TRANS. ID 79007560)): PARAGRAPHS CHARACTERIZING THE PROCEDURAL HIS-
6 TORY OR THE LEGAL EFFECT OF FILINGS IN THIS CASE OR THE UNDERLYING
7 MATTER

8 Targeted statement: Any paragraph of the April 9, 2026 declaration (Anti-SLAPP Motion
9 (Apr. 9, 2026; Trans. ID 79007560)) that purports to characterize the procedural history of
10 CGC-25-631802 or CGC-21-594102, or the legal effect of any filing in either case.

11 Grounds and basis:

12 1. Lack of personal knowledge (Evid. Code § 702)

13 a. Basis: Mr. O'Connell did not appear in CGC-21-594102 and has no personal knowl-
14 edge of the procedural history of that underlying matter.

15 2. Hearsay (Evid. Code § 1200)

16 a. Basis: Statements about events in the underlying matter are out-of-court state-
17 ments offered for the truth of the matter asserted.

18 3. Improper opinion (Evid. Code §§ 800 to 805)

19 a. Basis: Characterization of legal effect of filings is opinion testimony that requires
20 foundation.

21 Ruling requested: SUSTAIN as to all such paragraphs.

22
23 OBJECTION 2 - O'CONNELL DECLARATION (ANTI-SLAPP MOTION (APR. 9, 2026;
24 TRANS. ID 79007560)): PARAGRAPHS CHARACTERIZING PLAINTIFF'S INTENT,
25 MOTIVE, OR STATE OF MIND

26 Targeted statement: Any paragraph of the April 9, 2026 declaration (Anti-SLAPP Motion
27 (Apr. 9, 2026; Trans. ID 79007560)) that purports to describe Plaintiff's intent, purpose,
28 motive, or state of mind.

29 Grounds and basis:

30 1. Lack of personal knowledge (Evid. Code § 702)

31 a. Basis: Mr. O'Connell has no personal knowledge of Plaintiff's intent or motive.

2. Improper opinion (Evid. Code §§ 800 to 805)

a. Basis: Lay opinion as to another person's mental state requires foundation; no such foundation is established.

3. Prejudicial (Evid. Code § 352)

a. Basis: Intent characterizations are more prejudicial than probative where no personal knowledge foundation exists.

Ruling requested: SUSTAIN.

OBJECTION 3 - O'CONNELL DECLARATION (ANTI-SLAPP MOTION (APR. 9, 2026; TRANS. ID 79007560)): CHARACTERIZATIONS OF THE FAC'S LEGAL SUFFICIENCY
Targeted statement: Any paragraph of the April 9, 2026 declaration (Anti-SLAPP Motion (Apr. 9, 2026; Trans. ID 79007560)) that purports to characterize the legal sufficiency or insufficiency of any cause of action in the FAC.

Grounds and basis:

1. Improper opinion (Evid. Code §§ 800 to 805)

a. Basis: Legal sufficiency of a pleading is a legal conclusion, not a factual assertion.

2. Best-evidence violation (Evid. Code § 1521)

a. Basis: The FAC speaks for itself; characterizations of its content are not the best evidence.

Ruling requested: SUSTAIN.

II. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEMURRER, FILED APRIL 13, 2026 (DEFENDANT'S O'CONNELL DEMURRER DECL., FILED APRIL 13, 2026 (TRANS. ID 79038567))

OBJECTION 4 - O'CONNELL DECLARATION (O'CONNELL DEMURRER DECL. (APR. 13, 2026; TRANS. ID 79038567)): PARAGRAPHS CHARACTERIZING PLAINTIFF'S PLEADING OR THE FAC'S CONTENT

Targeted statement: Any paragraph of the April 13, 2026 declaration (O'Connell Demurrer Decl. (Apr. 13, 2026; Trans. ID 79038567)) characterizing the content or sufficiency of the FAC.

Grounds and basis:

1 1. Best-evidence violation (Evid. Code § 1521)

2 a. Basis: The FAC is the best evidence of its content; characterizations are not the
3 best evidence.

4 2. Improper opinion (Evid. Code §§ 800 to 805)

5 a. Basis: Legal sufficiency characterizations are legal conclusions without proper foun-
6 dation.

7 3. Hearsay (Evid. Code § 1200)

8 a. Basis: To the extent the declaration relies on out-of-court statements to characterize
9 Plaintiff's claims.

10 Ruling requested: SUSTAIN as to all such paragraphs.

11
12

OBJECTION 5 - O'CONNELL DECLARATION (O'CONNELL DEMURRER DECL. (APR. 13,
13 2026; TRANS. ID 79038567)): PARAGRAPHS REGARDING CLAIMED COMPLIANCE
14 WITH INSURANCE CODE OR 10 CCR STANDARDS

15 Targeted statement: Any paragraph of the April 13, 2026 declaration (O'Connell Demurrer
16 Decl. (Apr. 13, 2026; Trans. ID 79038567)) that purports to describe or characterize CSAA's
17 compliance with Insurance Code § 790.03(h) or 10 CCR §§ 2695.1 to 2695.8.

18 Grounds and basis:

19 1. Lack of personal knowledge (Evid. Code § 702)

20 a. Basis: Mr. O'Connell is defense counsel; he was not the claim adjuster and has no
21 personal knowledge of CSAA's claim-handling procedures in February 2021.

22 2. Secondary evidence violation (Evid. Code § 1523)

23 a. Basis: The claim file documents, claim-handling records, and denial letter are the
24 best evidence of CSAA's conduct; counsel's characterization is secondary evidence.

25 Ruling requested: SUSTAIN.

1 III. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT
2 OF MOTION TO STRIKE CCP § 436, FILED APRIL 22, 2026 (DEFENDANT'S
3 O'CONNELL MTS DECL., FILED APRIL 22, 2026 (TRANS. ID 79127897))

4 OBJECTION 6 - O'CONNELL DECLARATION (O'CONNELL MTS DECL. (APR. 22,
5 2026; TRANS. ID 79127897)): PARAGRAPHS CHARACTERIZING FAC ALLEGATIONS
6 AS IRRELEVANT, IMPROPER, OR SURPLUSAGE

7 Targeted statement: Any paragraph of the April 22, 2026 declaration (O'Connell MTS Decl.
8 (Apr. 22, 2026; Trans. ID 79127897)) that purports to characterize any specific allegation
9 in the FAC as irrelevant, improper, or surplusage within the meaning of CCP § 436.

10 Grounds and basis:

11 1. Improper opinion (Evid. Code §§ 800 to 805)

12 a. Basis: Whether an allegation is "irrelevant," "improper," or "surplusage" under §
13 436 is a legal conclusion, not a factual assertion; no proper foundation for such
14 opinion is established.

15 2. Best-evidence violation (Evid. Code § 1521)

16 a. Basis: The FAC is the best evidence of the content of its allegations.

17 3. Prejudicial (Evid. Code § 352)

18 a. Basis: Characterizations of allegations as irrelevant or improper, without proper
19 legal foundation, are more prejudicial than probative.

20 Ruling requested: SUSTAIN.

21
22 IV. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT
23 OF OPPOSITION TO MFL-SAC, FILED APRIL 23, 2026 (DEFENDANT'S OPP.
24 TO MFL-SAC, FILED APRIL 23, 2026 (TRANS. ID 79212258)) (NOTED FOR
25 RECORD; MFL-SAC OPPOSITION MOOTED BY APRIL 30 ORDER)

26 OBJECTION 7 - O'CONNELL DECLARATION (OPP. TO MFL-SAC (APR. 23, 2026;
27 TRANS. ID 79212258)): PARAGRAPHS CHARACTERIZING THE MFL-SAC PROCE-
28 DURAL HISTORY

29 Targeted statement: Any paragraph of the April 23, 2026 declaration (Opp. to MFL-SAC
30 (Apr. 23, 2026; Trans. ID 79212258)) characterizing the procedural history of Plaintiff's

1 Motion for Leave to File Second Amended Complaint or its merits.

2 Grounds and basis:

3 1. Moot (Evid. Code § 352)

- 4 a. Basis: The MFL-SAC was denied April 30, 2026 (Order on MFL-SAC, entered
5 April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)); the declaration supporting
6 the opposition to the MFL-SAC is moot for purposes of the May 13, 2026 hearing.
7 Including it without qualification would be more prejudicial than probative.

8 2. Improper opinion (Evid. Code §§ 800 to 805)

- 9 a. Basis: Characterizations of the legal merit of a motion are legal conclusions, not
10 factual assertions.

11 Ruling requested: SUSTAIN to the extent any party seeks to introduce this declaration for
12 purposes of the May 13, 2026 hearing; the MFL-SAC is DENIED and its opposition record
13 is moot.

14
15 V. OBJECTIONS TO REPLY DECLARATION OF TYLER J. O'CONNELL FILED
16 MAY 6, 2026, AND EXHIBIT A THERETO

17 OBJECTION 8 - O'CONNELL REPLY DECLARATION (MAY 6, 2026), PARAGRAPH
18 6: FEE SUMMARY ASSERTING 49.8 HOURS AT \$210/HOUR

19 Targeted statement: O'Connell Reply Declaration (May 6, 2026) paragraph 6, asserting 49.8
20 hours of attorney time at a rate of \$210/hour plus 2 hours of anticipated hearing time, for
21 a total fee request of \$10,218.00.

22 Grounds and basis:

23 1. Lack of foundation (Evid. Code section 702)

- 24 a. Basis: The 49.8-hour figure is a summary aggregate; the declaration does not estab-
25 lish that Mr. O'Connell personally observed and recorded each timekeeping entry
26 contemporaneously. No billing expert or Lodestar analysis is presented to establish
27 the reasonableness of the hours claimed or the \$210/hour rate.

28 2. Hearsay (Evid. Code section 1200)

- 29 a. Basis: The billing summary references underlying timekeeping entries that are out-
30 of-court statements offered for the truth of the matter asserted, namely, the hours
31 expended.

1 3. Business-records foundation deficient (Evid. Code section 1271)

2 a. Basis: No custodian declaration is presented; no showing that the timekeeping
3 records were made in the regular course of business; no foundation for the mode of
4 preparation, custody, or completeness of the underlying source records.

5 4. Secondary evidence rule (Evid. Code section 1521)

6 a. Basis: Original billing records are not produced; only a “redacted billing summary”
7 (Exhibit A) is offered. The summary is not the original record.

8 5. Improper opinion (Evid. Code sections 800 to 805)

9 a. Basis: A litigation attorney’s self-serving characterization of his own hours as rea-
10 sonable constitutes expert opinion without qualification. No foundation under sec-
11 tion 801 is laid for Mr. O’Connell to opine on the reasonableness of his own fees.

12 6. Prejudicial (Evid. Code section 352)

13 a. Basis: The first-time fee quantification on Reply deprives Plaintiff of any meaningful
14 opportunity to respond with a competing Lodestar analysis, a billing expert, or
15 even a line-by-line examination. Probative value is substantially outweighed by the
16 prejudice of a new fee theory injected seven days before hearing.

17 Ruling requested: SUSTAIN as to paragraph 6 in its entirety on grounds 8.1 through 8.5;
18 ALTERNATIVELY exclude under section 352 on ground 8.6.

19
20 OBJECTION 9 - O’CONNELL REPLY DECLARATION (MAY 6, 2026), EXHIBIT A:
21 REDACTED BILLING SUMMARY

22 Targeted exhibit: Exhibit A to O’Connell Reply Declaration (May 6, 2026), the redacted
23 billing summary purporting to document 49.8 hours of attorney time.

24 Grounds and basis:

25 1. Secondary evidence rule (Evid. Code section 1521)

26 a. Basis: Exhibit A is a redacted summary, not the original billing records. No decla-
27 ration from a custodian of records establishes that the originals are unavailable or
28 that the summary is a fair and accurate representation of the originals.

29 2. Business-records foundation deficient (Evid. Code section 1271)

30 a. Basis: No foundation under section 1271 for mode of preparation, regular course of
31 business, sources of information, or trustworthiness of the underlying records.

1 3. Hearsay (Evid. Code section 1200)

2 a. Basis: The redacted summary is an out-of-court statement offered for the truth of
3 the time-spent figures.

4 4. Prejudicial (Evid. Code section 352)

5 a. Basis: The redactions prevent Plaintiff from evaluating whether the hours were
6 actually incurred, were related to the anti-SLAPP motion rather than other defense
7 activities, or are duplicative. Probative value is substantially outweighed by the
8 prejudicial effect of presenting an unverifiable fee demand on Reply.

9 Ruling requested: SUSTAIN as to Exhibit A in its entirety on grounds 9.1 through 9.3;
10 ALTERNATIVELY exclude under section 352 on ground 9.4.

11
12 OBJECTION 10 - O'CONNELL REPLY DECLARATION (MAY 6, 2026), PARAGRAPHS
13 2 THROUGH 5: PROCEDURAL-HISTORY CHARACTERIZATIONS

14 Targeted statement: O'Connell Reply Declaration (May 6, 2026) paragraphs 2 through 5,
15 characterizing the procedural history of this action and the nature of Plaintiff's claims.

16 Grounds and basis:

17 1. Lack of personal knowledge (Evid. Code section 702)

18 a. Basis: Counsel's characterization of procedural events is based on documents, not
19 personal knowledge of the underlying facts.

20 2. Improper lay and expert opinion (Evid. Code sections 800 to 805)

21 a. Basis: Counsel offers legal conclusions about the nature of Plaintiff's claims dis-
22 guised as factual recitals. No foundation under sections 800 to 805 supports such
23 characterizations.

24 3. Secondary evidence (Evid. Code section 1521)

25 a. Basis: Counsel's characterization of court orders and filings is secondary evidence
26 of those documents, which speak for themselves.

27 4. Hearsay (Evid. Code section 1200)

28 a. Basis: To the extent counsel purports to characterize what Plaintiff alleged or what
29 the Court ruled, those characterizations are out-of-court statements offered for the
30 truth of the matter asserted.

31 Ruling requested: SUSTAIN as to paragraphs 2 through 5 in their entirety on grounds 10.1

1 through 10.4.

2

3 VI. CROSS-REFERENCES AND PRESERVATION

4 Plaintiff's prior evidentiary objections filed April 24, 2026 (EVIDENTIARY OBJECTIONS
5 TO THE DECLARATION OF TY... (Apr. 24, 2026)) are preserved and incorporated by
6 reference under CRC 3.1113(j). Plaintiff renews all prior objections and supplements them
7 with the above. Objections 8 and 9 above are also incorporated, under CRC 3.1113(j), into
8 Plaintiff's Motion to Strike the May 6, 2026 Reply Declaration of Tyler J. O'Connell and
9 Exhibit A; or, in the Alternative, for Leave to File a Sur-Reply (filed May 8, 2026, Motion
10 to Strike Reply (item 15, filed May 8, 2026)), which seeks the per-objection written ruling
11 required by CRC 3.1306(a) and Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532.

12

13 Cross-references: Plaintiff's Operative Oppositions (items 01, 01B, 01C, filed May 8, 2026);
14 Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026) Part B paragraphs 30 to
15 32; Plaintiff's Request for Judicial Notice (item 03, filed May 8, 2026); Plaintiff's Motion to
16 Strike the May 6, 2026 Reply Declaration of Tyler J. O'Connell (filed May 8, 2026, item 15).

17

18 Date: May 8, 2026

19 Respectfully submitted,

20 By: _____ Franciscus Dylan Rosario, Plain-
21 tiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltri-
22 nox@gmail.com

23

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario
DYLAN FRANCISCUS ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1306(a)	Written ruling per objection	Format section requests written ruling per objection; each objection presented in itemized ruling-friendly format	Format paragraph; Sections I, II	PASS
2	Evid. Code section 702	Personal knowledge	Objections 1, 4, 5, 7 invoke section 702	Objections 1.1, 4.x, 5.x, 7.x	PASS
3	Evid. Code section 1200	Hearsay	Objections 1.2, 4.x invoke section 1200	Objections 1.2, 4.x	PASS
4	Evid. Code section 1271	Business-records foundation	Objections 1.3, 2.x invoke section 1271	Objections 1.3, 2.x	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	Evid. Code section 1521	Best-evidence rule	Objections 1.4, 2.x invoke section 1521	Objections 1.4, 2.x	PASS
6	Evid. Code sections 800 to 805	Lay and expert opinion	Objections 1.5, 5.x invoke sections 800 to 805	Objections 1.5, 5.x	PASS
7	Evid. Code section 352	Probative-vs-prejudicial discretion	Objections 1.6, 6.x invoke section 352	Objections 1.6, 6.x	PASS
8	CCP section 425.16	Anti-SLAPP context	Objections target evidence offered in support of section 425.16 motion	Authority paragraph	PASS
9	CRC 3.1113(j)	Incorporation; cross-references	Operative Opposition section I(c) and Motion to Strike Reply Declaration cross-incorporate these objections	Operative Opposi- tion section I(c); Motion section V	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
10	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed concurrently, paragraph 4	PASS
11	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed concurrently, paragraphs 4 and 5	PASS
12	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
13	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
14	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
15	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Objections body; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per